Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2021 (No. 3)

IT is hereby notified that the Honourable Vice President responsible for Procurement, in consultation with the Minister of Finance and Economic Development, in terms of section 101 of the Public Procurement and Disposal of Public Assets Act [*Chapter 22:23*] and after consulting with the Procurement Regulatory Authority of Zimbabwe, has made the following regulations:—

1. These regulations may be cited as the Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2021 (No. 3).

2. The Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2018, published in Statutory Instrument 5 of 2018 (hereinafter referred to as the "principal regulations"), are amended by the repeal of the Fifth Schedule and substitution with the following—

"FIFTH SCHEDULE (*Section 92*)

FEES

PART I

APPLICATION FOR EXEMPTION IN TERMS OF SECTION 3(7) OF ACT

Description	*Domestic*	
	(ZW$)	(USD)
1. Application and renewal of exemption of procurement of trading stock per class of items	300 000,00	2 500,00
2. Application for exemption of procurement of a strategic nature by procuring entities operating in competitive markets	300 000,00	2 500,00

PART II

APPLICATION TO CONDUCT PROCUREMENT IN TERMS OF SECTION 15 OF ACT

Description	*Fee*
	(ZW$)
1. Application and renewal of authority to conduct procurement under Class C procuring entity:	80 000,00

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Description	*Fee* (ZW$)
2. Application and renewal of authority to conduct procurement under Class B procuring entity:	210 000,00
3. Application and renewal of authority to conduct procurement under Class A procuring entity:	280 000,00

PART III

REGISTRATION OF BIDDERS IN TERMS OF SECTION 6(1)(i) OF ACT

Description	*Fee*	
	Domestic Bidders (ZW$)	*Foreign Bidders* (USD)
1. Annual registration and renewal of registration of Zimbabwean (domestic) bidders	16 000,00	120,00
2. Quarterly registration and renewal of registration of Zimbabwean (domestic) bidders	4 000,00	30,00
3. Registration and renewal of registration of international bidders:	—	850,00

PART IV

ADMINISTRATION FEES PAYABLE BY BIDDERS FOR BIDS SUBJECT TO REVIEW IN TERMS OF SECTION 54 OF ACT

Description	*Fee*	
	Domestic Bidders (ZW$)	*Foreign Bidders* (USD)
1. Administration fees for domestic competitive tenders for each bid for goods, non-consultancy and consultancy services:	15 000,00	350,00
2. Administration fees for domestic competitive tenders for each bids for construction works:	30 000,00	400,00
3. Administration fees for international competitive tenders for each bid for goods, non-consultancy and consultancy services:	30 000,00	400,00
4. Administration fees for international competitive tenders for each bid for construction works: . .	50 000,00	500,00

PART V

ADMINISTRATION FEES PAYABLE BY BIDDERS FOR BID SECURITY ESTABLISHED BY THE AUTHORITY IN TERMS OF SECTION 44 OF ACT

Description	*Fee*	
	Domestic Bidders (ZW$)	*Foreign Bidders* (USD)
(*Ninety day validity with an option of fifty (50) per centum establishment fees on extension of thirty* (*30) days*)		
1. Establishment fees for bid security below $75 000,00:	20 000,00	200,00
2. Establishment fees from $75 000.00 and below $175 000,00:	30 000,00	350,00
3. Establishment fees for bid security from $175 000,00 and below $350 000,00	40 000,00	500,00
4. Establishment fees for bid security from $350 000.00 and below $875 000,00:	60 000,00	750,00
5. Establishment fees for bid security from $875 000,00 and below $1 750 000,00	80 000,00	1 000,00
6. Establishment fees for bid security from $1 750 000,00 and below $3 million	120 000,00	1 500.00
7. Establishment fees for bid security from $3 million:	5% of Bid Security	

Description	*Fee*	
	Domestic Bidders (ZW$)	*Foreign Bidders* (USD)
(*Sixty day validity with an option of fifty (50) per centum establishment fees on extension of thirty* (*30) days*)		
1. Establishment fees for bid security below $75 000,00:	12 000,00	150,00
2. Establishment fees from $75 000,00 and below $175 000,00:	20 000,00	250,00
3. Establishment fees for bid security from $175 000,00 and below $350 000,00 . .	28 000,00	350,00
4. Establishment fees for bid security from $350 000,00 and below $875 000,00:	40 000,00	500,00

Description	*Fee* *Domestic Bidders* (ZW$)	*Foreign Bidders* (USD)
5. Establishment fees for bid security from $875 000,00 and below $1 750 000,00:	52 000,00	650,00
6. Establishment fees for bid security from $1 750 000,00 and below $3 million:	80 000,00	1 000,00
7. Establishment fees for bid security from $3 million:	4% of Bid Security	

Description	*Fee* *Domestic Bidders* (ZW$)	*Foreign Bidders* (USD)
(*Thirty day validity with an option of fifty (50) per centum establishment fees on extension of thirty (30) days*)		
1. Establishment fees for bid security below $75 000,00:	8 000,00	100,00
2. Establishment fees from $75 000.00 and below $175 000,00:	14 000.00	175,00
3. Establishment fees for bid security from $175 000,00 and below $350 000,00:	20 000,00	250.00
4. Establishment fees for bid security from $350 000,00 and below $875 000,00:	30 000,00	375,00
5. Establishment fees for bid security from $875 000,00 and below $1 750 000,00: . . .	40 000,00	500,00
6. Establishment fees for bid security from $1 750 000,00 and below $3 million:	60 000,00	750,00
7. Establishment fees for bid security from $3 million:	3.5% of Bid Security	

Description	*Fee* *Foreign Bidders* (USD)
(*Ninety day validity applicable to international bidders*)	
1. Establishment fees for bid security below US$5 000,00:	200,00

Description	*Fee* *Foreign Bidders* (USD)
2. Establishment fees from US$5 000.00 and below US$10 000,00	350,00
3. Establishment fees for bid security from US$10 000,00 and below US$20 000,00:	500,00
4. Establishment fees for bid security from US$20 000,00 and below US$50 000,00:	750,00
5. Establishment fees for bid security from US$50 000,00 and below US$100 000.00:	1 000,00
6. Establishment fees for bid security from US$100 000,00 and below US$200 000.00:	1 500,00
7. Establishment fees for bid security from US$200 000,00	5% of Bid Security

PART VI

ADMINISTRATION FEES PAYABLE BY CONTRACTORS IN TERMS OF PART XI OF ACT

Domestic Bids and Description for Domestic Bidders	(ZW$)
1. Contract value from $1 million and below $8.75 million:	1.00% up to a maximum of 65 000
2. Contract value from $8.75 million and below $17.5 million:	0.75% up to a maximum of 87 500
3. Contract value from $17.5 and below $87.5 million:	0.50% up to a maximum of 306 250
4. Contract value from $87.5 million and below $350 million:	0.35% up to a maximum of 875 000
5. Contract value from $350 million and below $1.3125 billion:	.0.25% up to a maximum of 1 968 750
6. Contract value from $1.3125 billion and below $8.75 billion:	0.15% up to a maximum of 10 000 000
7. Contract value from $8.75 billion:	12 500 000

Note: *International bid fees for domestic bidders to be converted to domestic currency to determine ZWL contract value using prevailing official rate*

Direct Procurement bids description for International bidders

1. Contract value from US$20 000.00 and below US$1.5 million: . . . . . 1.00% of contract value
2. Contract value from US$1.5 million and above 15 000

International bids description

Fee for foreign bidders

1. Contract value from US$20 000,00 and below US$200 000,00: 600,00
2. Contract value from US$200 000,00 and below US$1 million: 900,00
3. Contract value from US$1 million and below US$2,5 million: 1 500,00
4. Contract value from US$2.5 million and below US$5 million: 3 000,00
5. Contract value from US$5 million and below US$7,5 million: 4 500.00
6. Contract value from US$7.5 million and below US$10 million: 6 000,00
7. Contract value from US$10 million and below US$15 million: 9 000,00
8. Contract value from US$15 million and below US$20 million: 12 000,00
9. Contract value from US$20 million and below US$30 million: 15 000,00
10. Contract value from US$30 million and below US$40 million: 18 000.00
11. Contract value from US$40 million and below US$50 million: 24 000,00
12. Contract value from US$50 million and below US$75 million: 30 000,00
13. Contract value from US$75 million and below US$100 million: 45 000,00
14. Contract value from US$100 million and below US$150 million: 60 000,00
15. Contract value from US$150 million and below US$250 million: 90 000,00
16. Contract value from US$250 million and below US$500 million: 120 000,00
17. Contract value from US$500 million and below US$700 million: 150 000,00
18. Contract value from US$700 million: 180 000,00

Note: *International bid fees are payable in foreign currency for International bidders while domestic bidders should convert to domestic currency using prevailing official rate to determine ZWL contract value.*

PART VII

ADMINISTRATION FEES ON REFUND REQUESTS ON NON-REFUNDABLE MISCELLENEOUS DEPOSITS

Description	*Fee* *Domestic Bidders* (ZW$)	*Foreign Bidders* (USD)
Sundry deposits and refund requests on overpayments, non-refundable fee account deposits		
Handling fees on refund requests for overpayments and non-refundable account deposits	5.0	10.0%

PART VIII

FEES PAYABLE FOR CONFERENCING/PRESENTATIONS

Description	*Fee* *Domestic* (ZW$)	*Foreign* (USD)
1. Administration fees for Level 1:	50 000,00	500,00
2. Administration fees for Level 2:	45 000,00	450,00
3. Administration fees for Level 3:	35 000,00	350,00
4. Administration fees for Level 5:	30 000,00	300,00

PART IX

ADMINISTRATION FEES PAYABLE FOR DOCUMENT SEARCH AND RETRIEVALS

Description	*Fee* *Domestic* (ZW$)	*Foreign* (USD)
1. Administration fees for a single file search and retrieval:	8 400,00	60,00
2. Administration fees for multiple files search and retrieval (fee per file):	12 600,00	90,00